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April 4, 2017					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 16-17

**CONNIE LANE CHRISTY and
CHRISTY COLLECTION INTERNATIONAL, INC. on behalf of
THE ANNIE GRACE FOUNDATION FOR THE CHILDREN OF BALI, INDONESIA**

v.

AIR 7 SEAS TRANSPORT LOGISTICS INC.

INITIAL DECISION DISMISSING COMPLAINT AT COMPLAINANTS' REQUEST¹

On March 20, 2017, the Office of the Secretary received a letter from Connie Lane Christy asking to withdraw the complaint filed by Complainants, Connie Lane Christy and Christy Collection International, Inc. on behalf of The Annie Grace Foundation for the Children of Bali, Indonesia. On March 21, 2017, the Office of the Secretary provided a copy of the letter to all parties and later on March 21, 2017, Respondent, Air 7 Seas Transport Logistics Inc., confirmed receipt of the letter.

Complainants instituted this proceeding on November 15, 2016, alleging violations of the Shipping Act for the loss of all contents of a 40' container with 261 pieces of household goods and personal effects, including irreplaceable family heirlooms, and seeking \$520,000 dollars for the loss. Complaint at 2-6.

On November 21, 2016, a notice of filing and assignment was issued. On November 30, 2016, an initial order was issued. The Respondents were granted additional time to file a response and on January 12, 2017, prior to a response being filed by the Respondent, the Complainants filed a motion to amend the original complaint. On January 24, 2017, Respondent filed an opposition to the motion to amend because it did not attach an amended complaint. On January 25, 2017, the parties were contacted by staff in the Office of Administrative Law Judges to schedule a pre-hearing conference. The parties requested that the pre-hearing conference be held on February 16, 2017.

¹ This Initial Decision will become the decision of the Commission in the absence of review by the Commission. 46 C.F.R. § 502.227.

On February 22, 2017, after the February 16, 2017, pre-hearing conference, a scheduling order was issued which said, in part:

At the pre-hearing conference, the parties indicated that they have been working toward settling their claims, with a focus on determining the basis and evidence related to damages. The parties have been working with the Commission's Office of Consumer Affairs and Dispute Resolution (CADRS). It was agreed that preliminary exchange of documents could aid in resolution of the proceeding and will be necessary if the case moves forward. Both parties indicated that they are willing to negotiate a resolution of the proceeding. In an effort to limit costs for the parties, it was agreed that additional time for a settlement conference with a settlement judge would be beneficial. If the parties are not able to resolve the proceeding, then it will move forward on the merits.

Scheduling Order at 1. Chief Judge Guthridge agreed to serve as a settlement judge and speak with the parties on March 2, 2017. Scheduling Order at 2. In the event that the settlement conference was not successful, Respondents were ordered to file a response to the complaint by March 16, 2017. On March 16, 2017, Respondents filed a motion to dismiss the complaint in lieu of an answer, or, in the alternative, motion for a more definite statement.

Pursuant to Commission Rule 72(a)(1), "the complainant may dismiss an action without an order from the presiding officer by filing a notice of dismissal before the opposing party serves either an answer, a motion to dismiss, or a motion for summary decision." 46 C.F.R. § 502.72(a). Pursuant to Commission Rule 2, "the date of filing shall be either the date on which the pleading, document, or paper is physically delivered to the Commission by a party, the date on which a party certifies it to have been deposited in the mail or delivered to a courier, or the date of email transmission. 46 C.F.R. § 502.2(b)(2). Because we do not have a certification of the date the letter was deposited into the mail, it is appropriate to treat the date it was physically delivered to the Commission, March 20, 2017, as the date of filing. There is no indication that the Respondents were aware of the letter until March 21, 2017. The letter was received by the Commission after the Respondents filed their motion to dismiss on March 16, 2017. Accordingly, the proceeding cannot be dismissed pursuant to the Rule 72(a)(1) voluntary dismissal process.

Pursuant to Commission rule 72(a)(3), "an action may be dismissed at the complainant's request only by order of the presiding officer, on terms the presiding officer considers proper." 46 C.F.R. § 502.72(a)(3). Unless the notice or stipulation states otherwise, the dismissal is without prejudice. 46 C.F.R. § 502.72(a)(3).

Ms. Christy handled the proceeding *pro se*, representing the Complainants by herself. She was encouraged to hire an attorney, provided information about how to access the Commission's docket log, encouraged to review prior Commission proceedings, and given the opportunity to ask questions about the proceeding. Scheduling Order at 2. She worked with members of the Commission's Office of Consumer Affairs and Dispute Resolution Services, appeared by telephone

at a pre-hearing conference with the undersigned, and participated by telephone in a settlement conference with the Chief Administrative Law Judge. After having been provided with multiple opportunities to resolve the proceeding, she was advised that the parties “will be expected to file and respond to discovery and brief the merits of the proceeding without further delay.” Scheduling Order at 2.

Ms. Christy states her “total frustration with the process” and indicates that she is withdrawing her suit against Air 7 Seas immediately. Letter at 1. There is a pending request to amend the complaint that was filed without an amended complaint attached and a motion to dismiss or provide a more definite statement which would require her response. Respondent has not objected to the requested dismissal. The decision not to pursue the matter further appears proper and her request will be granted.

For the reasons stated above, Complainants’ request to dismiss the proceeding is **GRANTED** and the proceeding is **DISMISSED WITHOUT PREJUDICE**. All pending motions are **DISMISSED AS MOOT**.

A handwritten signature in cursive script, reading "Erin M. Wirth", is written over a horizontal line.

Erin M. Wirth
Administrative Law Judge